

		This Motion has been withdrawn on July 30, 2026. ROA 253 The trial in this matter is currently set for August 28, 2026. Moving Party Defendant to give notice of all of the above.
2.	Nguyen vs. Ammari 24-01405008	Motion to Compel Physical Examination Defendant Estate of Sam Ammari's Motion to Compel Plaintiff Kim Lieu Nguyen to submit to a second independent medical examination is DENIED. (Code Civ. Proc., § 2032.320(a); see also <i>Vinson v. Superior Court</i> (1987) 43 Cal.3d 833, 840 [good cause requires finding of relevancy and specific facts justifying the discovery sought].) Defendant has failed to show good cause to permit a second physical examination of Plaintiff's shoulder. There is no dispute that Plaintiff's shoulder injuries are at issue in this litigation. However, Plaintiff has already submitted to a physical examination of her shoulder by Dr. Michael P. Weinstein. Dr. Weinstein conducted provocative testing on Plaintiff's shoulder, including Neer's impingement test, Hawkins impingement test, Speed's test, and Crossed adduction test. Dr. Weinstein notes that the prior imaging of Plaintiff's shoulder is of poor quality and that a new MRI of Plaintiff's shoulder would be helpful in assessing her complaints. Defendant now seeks to subject Plaintiff to a second physical examination by Dr. Theodore Gregorious. Dr. Gregorious is also an orthopedic surgeon, but he specializes in shoulder injuries. The scope of Dr. Gregorious's proposed examination, however, is entirely duplicative of testing Dr. Weinstein had already conducted. The Court is unpersuaded there is good cause to subject Plaintiff to a second round of provocative testing of her shoulder. If Defendant believed it was necessary for a shoulder specialist to assess Plaintiff's shoulder injury, Defendant should have had a doctor who does specializes in shoulder injuries conduct a physical examination, with provocative testing, of Plaintiff's shoulder the first time. Plaintiff's request for sanctions is denied. Defendant had a reasonable basis to believe there was good cause to seek the second examination of Plaintiff's shoulder. Plaintiff shall provide notice of this ruling.